

1 IN THE CIRCUIT COURT FOR THE THIRTEENTH JUDICIAL CIRCUIT
2 IN AND FOR HILLSBOROUGH COUNTY, STATE OF FLORIDA
3 FAMILY LAW DIVISION

4 CASE NO.: 24-DR-001150
5 DIVISION: D

6 IN RE: THE MARRIAGE OF

7 SARAH HANSON,
8 Petitioner/Wife,

9 and

10 CHRISTOPHER HANSON,
11 Respondent/Husband.

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January 9th, 2025
1:52 p.m. - 2:10 p.m.

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HONORABLE KELLY AYERS
Tampa, Florida 33602

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21 REPORTED BY:

22 Kellie Trela, Notary Public

23 State of Florida

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25 STENOGRAPHICALLY REPORTED

COMPUTER-AIDED TRANSCRIPTION

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1 APPEARANCES:

2

3 VIVIAN HODZ, ESQ.
4 LAWRENCE HODZ, ESQ.
5 CORTES HODZ FAMILY LAW & MEDIATION,
6 P.A.
7 715 West Swann Avenue
8 Tampa, Florida 33606
9 813-514-0909

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8 Also Present:

9 Christopher Hanson
10 Carrie Snodgrass - Court Reporter

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1 (WHEREUPON, the court proceeding commenced.)

2 THE COURT: We are here on Hanson V. Hanson,
3 24-DR-2250.

4 And present on Zoom is Mr. Hanson.

5 Is Ms. Hanson present? Nope.

6 And then we also have present, Ms. Hodz,
7 Mr. Hodz, and then Mr. Hanson, if I already
8 didn't say that.

9 We are here on a Motion for Rehearing.

10 I had set a quick hearing on Ms. Hodz' Motion
11 to Withdraw. I granted the Motion to Withdraw,
12 and then Mr. Hanson filed a Motion for Rehearing
13 with his issue that it was set on such an
14 expedited basis that he did not have enough
15 notice. I concur with him, at this juncture, so
16 I am permitting him to have his hearing reheard.

17 So, Mr. Hanson, we're gonna go back to the
18 same question I asked you last time.

19 What is your basis for me not allowing
20 Ms. Hodz to withdraw?

21 MR. HANSON: Because, Your Honor, there's no
22 allegation of any ethical issue, whatsoever. And
23 since the first contact that I had with my first
24 attorney, my objective was exactly the same, and
25 I even explained that it needed to be taken care

1 of efficiently because if this started to get
2 into a fight, it would drag out and get ugly for
3 the kids. So efficiency was my main goal from my
4 first meeting with my first attorney, and
5 precisely what I feared would happen, has
6 happened, and it's gotten worse beyond what I
7 could have imagined.

8 And Ms. Hodz was my second attorney, and she
9 was given all of the information about how
10 difficult Mr. Davis was being. I think he's used
11 many inappropriate tactics, which I informed her
12 of before she took the case on. I even asked
13 her, at one point, when she -- she was not as
14 critical of some of the first attorney's work as
15 I was, and I asked her, you know, if she thought
16 that she was the right attorney for it, given how
17 difficult the wife's attorney was being, and she
18 said, yes, I'm gonna get you the documents you
19 need.

20 And, again, nothing changed about the facts.
21 Nothing changed about my objective. Nothing
22 changed about the law.

23 Ms. Hodz had a phone call with Mr. Davis, and
24 the outlook on the case went from, I'll get you
25 the records, no problem, to, I'm not gonna be

1 able to help you. You've got to find the most
2 aggressive male lawyer in town if you're gonna
3 want to pursue this.

4 And I don't understand how the facts, the
5 law, and objective don't change, but whether she
6 can help me does change.

7 And the interesting thing is that my first
8 attorney also had a conference with Mr. Davis
9 where before the conference, it was, we'll get
10 you the records, not a problem, to, they're not
11 gonna cooperate with anything. And the reason
12 Ms. Hodz withdrew is she told me that either I
13 had to cooperate with them on these issues that
14 they wanted to discuss that came up far later
15 than the discovery one, or she wouldn't be able
16 to help me. So she was going to withdraw
17 immediately after she had the conference with
18 Mr. Davis, and she didn't do any of the work that
19 I thought she was doing while Mr. Davis was
20 putting off the conference.

21 Mr. Davis had initially set the conference
22 before she had filed a Notice of Appearance.
23 Just before the conference was set to take place,
24 he said, I can't talk to you because you haven't
25 filed a Notice of Appearance. I'm not gonna

1 schedule it until you have. So that was a delay.
2 He just missed one of the conferences. I believe
3 there's one other delay with the conferences.

4 So none of the work was getting done, and I
5 had said that this was a critical issue that was
6 gonna spawn vast problems for my children and my
7 family if it didn't get taken care of quickly.
8 It hasn't gotten take care of quickly.

9 I'm confused. I've been honest with
10 everyone. I've tried to limit the conflict.
11 I've tried to move things along.

12 I've been sick for a month now, since the
13 hearing on December 13th. I filed the medical
14 records. I went to the ENT today. I've got
15 chronic sinus infections where I'm gonna have to
16 have a surgery for them and -- you know?

17 So it's impacting me. It's impacting my
18 children. I've been honest. I shared all of the
19 communications. So, you know, if there's
20 something that I've done that's inappropriate to
21 make me a bad, client, tell me what it is, and
22 that's fine. You can leave. But if the issue is
23 -- you know, I give you all of the facts about
24 the case and what I need done for my family, and
25 you don't do any work, and then you talk to the

1 attorney and say, he's just gonna be too
2 difficult. I don't want to do it. I don't think
3 that that's a valid basis to withdraw.

4 And my concern, as being a litigant in this
5 situation, is two attorneys have said that what
6 I'm asking for is very reasonable and they can do
7 it. And then there's a conversation with wife's
8 attorney where, suddenly, they're, like, it's
9 impossible.

10 So if I hire a third attorney, what if that
11 happens again? I just don't understand what's
12 happening during these conferences with Mr. Davis
13 that it's going from straight forward, we'll get
14 you the records, to it's impossible.

15 So if the facts are -- and I believe that
16 they are this -- that Ms. Hodz was fully informed
17 about the case objectives and the facts and was
18 given the opportunity to not take it after she
19 was aware of it and said, no, I got it, she
20 doesn't do the work, let's opposing counsel put
21 off the conference for -- I don't know -- five,
22 six weeks, and then has a conference and says,
23 well, I'm not gonna be able to do it, I don't
24 think that that's appropriate. I don't think
25 it's fair to me. I think that there's duties

1 owed to me. I think the manner in which she
2 resigned, immediately, without notice, is
3 reprehensible.

4 I think Mr. Davis filing four motions that
5 are going to effect my children's future -- my
6 children are doing incredibly well. So the idea
7 that he -- as Ms. Hodz is withdrawing on one-day
8 notice, over my objection, he files four motions,
9 two of which are gonna involve representatives,
10 drawing my kids' attention to the divorce. My
11 kids are doing fantastic. They're busy with
12 school and gymnastics and dance, and I don't
13 think there's a single person, a parent, a coach,
14 a teacher, a school administrator, that would say
15 one negative thing about the children or their
16 home environment, and they're trying to mess with
17 that now.

18 And, now, there's a hearing set for January
19 21st on that. I still don't have the resolution
20 to mandatory disclosures where Mr. Davis hasn't
21 even attempted to produce a certificate of
22 compliance that comes close to certifying what
23 he's required to certify, and there's motions
24 about my children's well-being filed, you know,
25 December 13th, six months after the discovery

1 issue came up, and they're gonna be heard at the
2 same time.

3 So I don't -- I'm confused. I don't know
4 what's going on. I don't know what I've done
5 wrong, as a client, other than have an objective
6 that just -- I can't live without it getting
7 done. I don't want to get into all of my
8 family's past about everything that happened, and
9 I don't want it to be more complicated for
10 Ms. Hanson than it has to be, but this is a -- it
11 was a red line for me and it's still a red line
12 for me, and it's gonna get much, much uglier and
13 much, much worse for my children. It's gonna be
14 a year that they're gonna live under this
15 conflict about me just trying to get some records
16 where, you know, Ms. Hanson was clearly dishonest
17 with me. The evidence shows that.

18 So I just want some help. So -- you know, I
19 hope that answers your question, Judge.

20 THE COURT: Okay. So what I'm hearing from
21 you, though, is that you've been dissatisfied
22 with Ms. Hodz' services, and she has filed a
23 Motion to Withdraw, which gives me the indication
24 that you two aren't working well together. So
25 I'm not certain why you would want to keep a

1 lawyer that's not working -- it's not anyone's
2 fault, necessarily. You're just not working.
3 You're not a good fit.

4 So I don't understand why you would want her
5 to still be your lawyer.

6 MR. HANSON: I don't believe it's a fit
7 problem, at all, Your Honor.

8 I like Ms. Hodz. I think that she's a good
9 attorney. I think that Mr. Davis is saying
10 something to her that -- I don't know what it is,
11 but for some reason, after each of my attorneys
12 have had a conference with Mr. Davis, they went
13 from, this is straight forward, we'll get you the
14 records, to, I can't help you. So -- and I don't
15 think that's a bad --

16 THE COURT: Mr. Hanson, it could be possible
17 that you have told them your version of what you
18 want and why, and once the lawyers have had a
19 lawyer, legal conversation, they've gotten a
20 different perspective on it and realized that
21 this prenup might govern what's going on. And
22 then if the prenup is valid, you wouldn't be
23 entitled to these records.

24 So that might be a possibility, but I can't
25 get into that because Mr. Davis is not here and

1 that's not fair.

2 MR. HANSON: It's not a possibility because
3 the prenup --

4 THE COURT: Mr. Hanson, I'm gonna stop you.
5 We cannot talk about the prenup because
6 Mr. Davis is not here.

7 We are here on a Motion to Withdraw, and I
8 need a legal basis -- and I've already given you
9 the only example I can think of off the top of my
10 head is that we have an impending trial and
11 Ms. Hodz is trying to get out before this trial
12 is set. That's the only reason I can think of
13 that I would not allow a Motion to Withdraw.

14 So have you found a legal basis that would
15 prohibit me from allowing Ms. Hodz to withdraw?

16 MR. HODZ: Judge, I'm sorry. I just want to
17 interject for a minute.

18 There's no trial set on this case.

19 THE COURT: I know.

20 MR. HODZ: I thought you said there was a
21 trial.

22 THE COURT: No. That was the -- I'm trying
23 to think of, in my 30 plus years of practicing, I
24 think I've only seen one Motion to Withdraw not
25 granted, and that's because there was a jury

1 trial next week. So that's the only thing I can
2 think of. So that's what my questions is.

3 Before Mr. Hanson answers, we do have a court
4 reporter. Would you like to put your position on
5 the record, Mr. Hodz?

6 MR. HODZ: Yes, I will, Judge.

7 THE COURT: Okay.

8 MR. HODZ: So this isn't about Mr. Davis or
9 discovery. This is about -- we cite it in our
10 motion, Judge -- in the original Motion to
11 Withdraw.

12 It has become repugnant, unfortunately, to
13 represent Mr. Hanson. He has attacked Ms. Hodz.
14 He has not followed advice. I won't get into it
15 past there. He's waived some attorney/client
16 privilege, it seems, by filing communications
17 with the Court.

18 But there's zero prejudice to him. Whether
19 this hearing was on a one-day notice or four
20 weeks notice, there was zero prejudice to him,
21 whatsoever.

22 He can clearly file stuff on his own. I've
23 seen the barrage of it come through in the last
24 -- I don't know -- less than 24 hours. There was
25 a Motion for Extension of Time filed to file his

1 responsive pleading. I know Mr. Davis has filed
2 a Motion for Judicial Default. There's a simple
3 remedy for it. You file the answer before
4 default's entered by the Court. You're entitled
5 to plead.

6 I don't know why Mr. Hanson is fighting so
7 much for my firm and Ms. Hodz to stay on, but
8 we -- it's probably borderline, at this point --
9 we have to withdraw. That's how bad it's gotten.

10 Mr. Hanson has attacked Ms. Hodz, just
11 continuously berated her and sent a barrage of
12 e-mails. It has to end. We cannot represent
13 him.

14 THE COURT: Okay.

15 MR. HODZ: We will not represent him. I
16 don't think, ethically, we can.

17 THE COURT: Mr. Hanson, I'll give you one
18 follow-up, please.

19 MR. HANSON: Your Honor, I have a lot to say
20 to that. There's a lot of very serious
21 allegations in there about me that don't have any
22 basis in reality.

23 Repugnant? I'd like to know what I've done
24 that makes representing me repugnant.

25 He said that I've attacked Ms. Hodz

1 repeatedly. I'd like for him to provide some
2 basis for that because these conclusory,
3 non-true, inaccurate summations of what I've done
4 are problematic.

5 I deserve some findings of fact here. The
6 facts are that Ms. Hodz made the decision that
7 she wanted to withdraw. In the conversation that
8 we had right after she spoke with Mr. Davis, and
9 she said, either you have to agree to this stuff
10 that they want you to agree to that came up long
11 after the discovery issue that you care about,
12 even though you told me that all of this other
13 stuff would happen if the discovery issue weren't
14 resolved, and I said, I can't do that. The
15 discovery issue is still my objective. No change
16 in facts, law, or objective, and that's when
17 Ms. Hodz decided to withdraw.

18 What's happened since then isn't relevant to
19 whether Ms. Hodz should be able to withdraw
20 because she put me in a position where there -- I
21 didn't have any assistance. Immediately, she cut
22 me off from help. It was ten days before she
23 even attempted to send me the file materials.

24 I've talked about the prejudice to my health,
25 to my children. It's not like the timeliness of

1 this came up only after Ms. Hodz withdrew. The
2 timeliness for this was my issue in July.

3 My children -- I don't know how much longer
4 my children are gonna keep things together, how
5 much longer my family can do this. Things are --

6 THE COURT: Mr. Hanson, I'm going to permit
7 them to withdraw as your lawyers.

8 If you are in a time crunch because of that,
9 I'd be happy to work with you. I've already set
10 a hearing for the 21st to address all of your
11 motions. I know that my judicial assistant has
12 told you, that doesn't mean you have to file them
13 all by then. I'm just gonna help you by getting
14 those that are pending set for a hearing. You
15 can file anything you want after that, and I'll
16 do the same thing. If we come on the 21st and
17 you still need some things to do, we'll talk
18 about it and I'll work with you accordingly, but
19 I'm going to allow them to withdraw because
20 there's no legal basis for me not to permit them
21 to withdraw.

22 In an abundance of caution, I concurred with
23 you that setting it in one day's notice might
24 have been a little soon. That's why I gave you
25 amply opportunity to come back and give me a

1 legal basis. You have not given me any legal
2 basis on why I should not allow them to withdraw.

3 I'm going to allow them to withdraw.

4 And, Mr. Hanson, I have -- I'm starting my
5 fifth year in this division. I see both of these
6 lawyers all the time. I see Mr. Davis all the
7 time. They happen to rotate a lot in front of
8 me. And I think you're sitting here with the
9 aggressive lawyers. You have the upper-hand.

10 MR. HANSON: Your Honor --

11 THE COURT: So the fact that you're telling
12 me that all of these lawyers are talking to
13 Mr. Davis and they're afraid and running from him
14 is complete opposite of how Mr. Davis practices
15 in front of me. He's like a good, old teddy
16 bear.

17 So the fact that all of these lawyers are
18 coming back and saying, hey, we can't do this, I
19 think they're all having a legal discussion, and
20 that's why they're coming to this conclusion. So
21 I don't think --

22 MR. HANSON: But why can't I know about that
23 discussion, Your Honor? Why don't we talk about
24 that discussion?

25 THE COURT: So this hearing has concluded --

1 MR. HANSON: I have more of a record that I'd
2 like to place. If you're not gonna let me do
3 that, that's fine, but I want to make it clear
4 that --

5 THE COURT: Mr. Hanson, give me a legal
6 basis. I'm gonna ask you one more time. I need
7 a -- you're a lawyer. I need a legal basis on
8 why I cannot allow Ms. Hodz to withdraw. Give me
9 a legal basis.

10 MR. HANSON: First, I don't believe it's my
11 burden to demonstrate that they're not able to
12 withdraw. I think it's their burden to prove
13 that there is a basis to withdraw.

14 THE COURT: Stop. Stop. Stop.
15 Mr. Hodz has done that.

16 MR. HANSON: I disagree with that, Your
17 Honor, and I'll be appealing it.

18 And I do have more questions and concerns
19 about the Court's schedule, things that have
20 occurred and --

21 THE COURT: I cannot discuss the case with
22 you because Mr. Davis is not present.

23 MR. HANSON: Why isn't he here, Your Honor?

24 THE COURT: Because he's not required to come
25 to a Motion to Withdraw. His client probably

1 doesn't want to pay for it.

2 He's not required to come to a hearing on a
3 Motion to Withdraw of your counsel. He has the
4 right to come, but he also has the right not to
5 come.

6 So I'm concluding this hearing. If you want
7 to appeal me, that's fine. That's why they all
8 have jobs. That's fine. Go ahead. If I'm
9 wrong, I'll accept responsibility, but I do not
10 know of any legal basis, myself. Mr. Hodz has
11 represented as to why they cannot go forward as
12 your counsel, and you haven't given me a legal
13 basis as to why I cannot allow them to withdraw.

14 So they are going to withdraw, and, Madam
15 Court Reporters, this hearing has concluded.

16 MR. HODZ: Judge, do you want me to prepare
17 the order?

18 THE COURT: Yes, please. Thank you.

19 (The court proceeding concluded at 2:10
20 p.m.)

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REPORTER'S CERTIFICATE

STATE OF FLORIDA

COUNTY OF PINELLAS

I, KELLIE TRELA, certify that I was authorized to
and did stenographically report the foregoing court
proceeding and that the transcript is a true and
complete record of my stenographic notes.

I further certify that I am not a relative,
employee, attorney, or counsel of any of the parties,
nor am I a relative or employee of any of the parties'
attorney or counsel connected with the action, nor am I
financially interested in the action.

DATED this 15th day of January, 2025.

Kellie Trela

KELLIE TRELA
Stenograph Shorthand Reporter
Notary Public, State of Florida
Commission No.: HH240824
Expires: July 11th, 2026

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11th [1] - 19:19
13th [2] - 6:13, 8:25
15th [1] - 19:15
1:52 [1] - 1:12

2

2025 [2] - 1:11, 19:15
2026 [1] - 19:19
21st [3] - 8:19, 15:10, 15:16
24 [1] - 12:24
24-DR-001150 [1] - 1:3
24-DR-2250 [1] - 3:3
2:10 [2] - 1:12, 18:19

3

30 [1] - 11:23
33602 [1] - 1:13
33606 [1] - 2:5

7

715 [1] - 2:5

8

813-514-0909 [1] - 2:6

9

9th [1] - 1:11

A

able [5] - 5:1, 5:15, 7:23, 14:19, 17:11
abundance [1] - 15:22
accept [1] - 18:9
accordingly [1] - 15:18
action [2] - 19:12, 19:13
address [1] - 15:10
administrator [1] - 8:14
advice [1] - 12:14
afraid [1] - 16:13
aggressive [2] - 5:2, 16:9
agree [2] - 14:9, 14:10
ahead [1] - 18:8
AIDED [1] - 1:23
allegation [1] - 3:22
allegations [1] - 13:21
allow [6] - 11:13, 15:19, 16:2, 16:3,

17:8, 18:13
allowing [2] - 3:19, 11:15
amply [1] - 15:25
AND [1] - 1:1
answer [1] - 13:3
answers [2] - 9:19, 12:3

appeal [1] - 18:7
appealing [1] - 17:17
Appearance [2] - 5:22, 5:25
APPEARANCES [1] - 2:1
appropriate [1] - 7:24
assistance [1] - 14:21
assistant [1] - 15:11
attacked [3] - 12:13, 13:10, 13:25
attempted [2] - 8:21, 14:23
attention [1] - 8:10
attorney [12] - 3:24, 4:4, 4:8, 4:16, 4:17, 5:8, 7:1, 7:8, 7:10, 10:9, 19:10, 19:12
attorney's [1] - 4:14
attorney/client [1] - 12:15
attorneys [2] - 7:5, 10:11
authorized [1] - 19:4
Avenue [1] - 2:5
aware [1] - 7:19
AYERS [1] - 1:13

B

bad [3] - 6:21, 10:15, 13:9
barrage [2] - 12:23, 13:11
basis [16] - 3:14, 3:19, 7:3, 11:8, 11:14, 13:22, 14:2, 15:20, 16:1, 16:2, 17:6, 17:7, 17:9, 17:13, 18:10, 18:13
bear [1] - 16:16
become [1] - 12:12
berated [1] - 13:11
beyond [1] - 4:6
borderline [1] - 13:8
burden [2] - 17:11, 17:12
busy [1] - 8:11
BY [1] - 1:18

C

cannot [6] - 11:5, 13:12, 17:8, 17:21, 18:11, 18:13
care [4] - 3:25, 6:7, 6:8, 14:11
Carrie [1] - 2:9
case [6] - 4:12, 4:24, 6:24, 7:17, 11:18, 17:21
CASE [1] - 1:3
caution [1] - 15:22
certain [1] - 9:25
CERTIFICATE [1] - 19:1
certificate [1] - 8:21
certify [3] - 8:23, 19:4, 19:9
certifying [1] - 8:22
change [3] - 5:5, 5:6, 14:15
changed [3] - 4:20, 4:21, 4:22
children [8] - 6:6, 6:18, 8:6, 8:15, 9:13, 14:25, 15:3, 15:4
children's [2] - 8:5, 8:24
Christopher [1] - 2:9
CHRISTOPHER [1] - 1:8
chronic [1] - 6:15
CIRCUIT [2] - 1:1
cite [1] - 12:9
clear [1] - 17:3
clearly [2] - 9:16, 12:22
client [3] - 6:21, 9:5, 17:25
close [1] - 8:22
coach [1] - 8:13
coming [2] - 16:18, 16:20
commenced [1] - 3:1
Commission [1] - 19:19
communications [2] - 6:19, 12:16
complete [2] - 16:14, 19:7
compliance [1] - 8:22
complicated [1] - 9:9
COMPUTER [1] - 1:23
COMPUTER-AIDED [1] - 1:23
concern [1] - 7:4
concerns [1] - 17:18
concluded [3] - 16:25, 18:15, 18:19

concluding [1] - 18:6
conclusion [1] - 16:20
conclusory [1] - 14:2
concur [1] - 3:15
concurred [1] - 15:22
conference [9] - 5:8, 5:9, 5:17, 5:20, 5:21, 5:23, 7:21, 7:22, 10:12
conferences [3] - 6:2, 6:3, 7:12
conflict [2] - 6:10, 9:15
confused [2] - 6:9, 9:3
connected [1] - 19:12
contact [1] - 3:23
continuously [1] - 13:11
conversation [3] - 7:7, 10:19, 14:7
cooperate [2] - 5:11, 5:13
CORTES [1] - 2:4
counsel [5] - 7:20, 18:3, 18:12, 19:10, 19:12
COUNTY [2] - 1:1, 19:3
Court [4] - 2:9, 12:17, 13:4, 18:15
COURT [18] - 1:1, 3:2, 9:20, 10:16, 11:4, 11:19, 11:22, 12:7, 13:14, 13:17, 15:6, 16:11, 16:25, 17:5, 17:14, 17:21, 17:24, 18:18
court [4] - 3:1, 12:3, 18:19, 19:5
Court's [1] - 17:19
critical [2] - 4:14, 6:5
crunch [1] - 15:8
cut [1] - 14:21

D

dance [1] - 8:12
DATED [1] - 19:15
Davis [20] - 4:10, 4:23, 5:8, 5:18, 5:19, 5:21, 7:12, 8:4, 8:20, 10:9, 10:12, 10:25, 11:6, 12:8, 13:1, 14:8, 16:6, 16:13, 16:14, 17:22
day's [1] - 15:23
days [1] - 14:22
December [2] - 6:13, 8:25
decided [1] - 14:17

decision [1] - 14:6
Default [1] - 13:2
default's [1] - 13:4
delay [2] - 6:1, 6:3
demonstrate [1] - 17:11
deserve [1] - 14:5
different [1] - 10:20
difficult [3] - 4:10, 4:17, 7:2
disagree [1] - 17:16
disclosures [1] - 8:20
discovery [6] - 5:15, 8:25, 12:9, 14:11, 14:13, 14:15
discuss [2] - 5:14, 17:21
discussion [3] - 16:19, 16:23, 16:24
dishonest [1] - 9:16
dissatisfied [1] - 9:21
DIVISION [2] - 1:2, 1:3
division [1] - 16:5
divorce [1] - 8:10
documents [1] - 4:18
done [8] - 6:4, 6:20, 6:24, 9:4, 9:7, 13:23, 14:3, 17:15
drag [1] - 4:2
drawing [1] - 8:10
during [1] - 7:12
duties [1] - 7:25

E

e-mails [1] - 13:12
effect [1] - 8:5
efficiency [1] - 4:3
efficiently [1] - 4:1
either [2] - 5:12, 14:9
employee [2] - 19:10, 19:11
end [1] - 13:12
ENT [1] - 6:14
entered [1] - 13:4
entitled [2] - 10:23, 13:4
environment [1] - 8:16
ESQ [2] - 2:3, 2:3
ethical [1] - 3:22
ethically [1] - 13:16
evidence [1] - 9:17
exactly [1] - 3:24
example [1] - 11:9
expedited [1] - 3:14
Expires [1] - 19:19
explained [1] - 3:25
Extension [1] - 12:25

F

fact [3] - 14:5, 16:11, 16:17
facts [7] - 4:20, 5:4, 6:23, 7:15, 7:17, 14:6, 14:16
fair [2] - 7:25, 11:1
FAMILY [2] - 1:2, 2:4
family [3] - 6:7, 6:24, 15:5
family's [1] - 9:8
fantastic [1] - 8:11
far [1] - 5:14
fault [1] - 10:2
feared [1] - 4:5
fifth [1] - 16:5
fight [1] - 4:2
fighting [1] - 13:6
file [6] - 12:22, 12:25, 13:3, 14:23, 15:12, 15:15
filed [8] - 3:12, 5:22, 5:25, 6:13, 8:24, 9:22, 12:25, 13:1
files [1] - 8:8
filing [2] - 8:4, 12:16
financially [1] - 19:13
findings [1] - 14:5
fine [4] - 6:22, 17:3, 18:7, 18:8
firm [1] - 13:7
first [7] - 3:23, 4:4, 4:14, 5:7, 17:10
fit [2] - 10:3, 10:6
five [1] - 7:21
FLORIDA [2] - 1:1, 19:2
Florida [4] - 1:13, 1:20, 2:5, 19:18
follow [1] - 13:18
follow-up [1] - 13:18
followed [1] - 12:14
FOR [2] - 1:1, 1:1
foregoing [1] - 19:5
forward [3] - 7:13, 10:13, 18:11
four [3] - 8:4, 8:8, 12:19
front [2] - 16:7, 16:15
fully [1] - 7:16
future [1] - 8:5

G

given [6] - 4:9, 4:16, 7:18, 11:8, 16:1, 18:12
goal [1] - 4:3
gonna [20] - 3:17,

4:18, 4:25, 5:2, 5:11, 5:25, 6:6, 6:15, 7:1, 7:23, 8:9, 9:1, 9:12, 9:13, 9:14, 11:4, 15:4, 15:13, 17:2, 17:6

govern [1] - 10:21
granted [2] - 3:11, 11:25
gymnastics [1] - 8:12

H

hand [1] - 16:9
Hanson [20] - 2:9, 3:2, 3:4, 3:5, 3:7, 3:12, 3:17, 9:10, 9:16, 10:16, 11:4, 12:3, 12:13, 13:6, 13:10, 13:17, 15:6, 16:4, 17:5
HANSON [12] - 1:5, 1:8, 3:21, 10:6, 11:2, 13:19, 16:10, 16:22, 17:1, 17:10, 17:16, 17:23
happy [1] - 15:9
head [1] - 11:10
health [1] - 14:24
heard [1] - 9:1
hearing [12] - 3:10, 3:16, 6:13, 8:18, 9:20, 12:19, 15:10, 15:14, 16:25, 18:2, 18:6, 18:15
help [7] - 5:1, 5:6, 5:16, 9:18, 10:14, 14:22, 15:13
HH240824 [1] - 19:19
HILLSBOROUGH [1] - 1:1
hire [1] - 7:10
Hodz [23] - 3:6, 3:7, 3:20, 4:8, 4:23, 5:12, 7:16, 8:7, 10:8, 11:11, 11:15, 12:5, 12:13, 13:7, 13:10, 13:25, 14:6, 14:17, 14:19, 15:1, 17:8, 17:15, 18:10
HODZ [9] - 2:3, 2:3, 2:4, 11:16, 11:20, 12:6, 12:8, 13:15, 18:16
Hodz' [2] - 3:10, 9:22
home [1] - 8:16
honest [2] - 6:9, 6:18
Honor [7] - 3:21, 10:7, 13:19, 16:10, 16:23, 17:17, 17:23

HONORABLE [1] - 1:13
hope [1] - 9:19
hours [1] - 12:24

I

idea [1] - 8:6
imagined [1] - 4:7
Immediately [1] - 14:21
immediately [2] - 5:17, 8:2
impacting [2] - 6:17
impending [1] - 11:10
impossible [2] - 7:9, 7:14
IN [3] - 1:1, 1:1, 1:4
inaccurate [1] - 14:3
inappropriate [2] - 4:11, 6:20
incredibly [1] - 8:6
indication [1] - 9:23
infections [1] - 6:15
information [1] - 4:9
informed [2] - 4:11, 7:16
interested [1] - 19:13
interesting [1] - 5:7
interject [1] - 11:17
involve [1] - 8:9
issue [9] - 3:13, 3:22, 6:5, 6:22, 9:1, 14:11, 14:13, 14:15, 15:2
issues [1] - 5:13

J

January [3] - 1:11, 8:18, 19:15
jobs [1] - 18:8
judge [2] - 11:16, 18:16
Judge [3] - 9:19, 12:6, 12:10
JUDICIAL [1] - 1:1
Judicial [1] - 13:2
judicial [1] - 15:11
July [2] - 15:2, 19:19
juncture [1] - 3:15
jury [1] - 11:25

K

keep [2] - 9:25, 15:4
KELLIE [2] - 19:4, 19:17
Kellie [1] - 1:19
KELLY [1] - 1:13
kids [2] - 4:3, 8:11

kids' [1] - 8:10

L

last [2] - 3:18, 12:23
law [3] - 4:22, 5:5, 14:16
LAW [2] - 1:2, 2:4
LAWRENCE [1] - 2:3
lawyer [5] - 5:2, 10:1, 10:5, 10:19, 17:7
lawyers [6] - 10:18, 15:7, 16:6, 16:9, 16:12, 16:17
leave [1] - 6:22
legal [12] - 10:19, 11:8, 11:14, 15:20, 16:1, 16:19, 17:5, 17:7, 17:9, 18:10, 18:12
less [1] - 12:24
limit [1] - 6:10
line [2] - 9:11
litigant [1] - 7:4
live [2] - 9:6, 9:14

M

Madam [1] - 18:14
mails [1] - 13:12
main [1] - 4:3
male [1] - 5:2
mandatory [1] - 8:20
manner [1] - 8:1
MARRIAGE [1] - 1:4
materials [1] - 14:23
mean [1] - 15:12
MEDIATION [1] - 2:4
medical [1] - 6:13
meeting [1] - 4:4
mess [1] - 8:16
might [3] - 10:21, 10:24, 15:23
minute [1] - 11:17
missed [1] - 6:2
month [1] - 6:12
months [1] - 8:25
most [1] - 5:1
Motion [13] - 3:9, 3:10, 3:11, 3:12, 9:23, 11:7, 11:13, 11:24, 12:10, 12:25, 13:2, 17:25, 18:3
motion [1] - 12:10
motions [4] - 8:4, 8:8, 8:23, 15:11
move [1] - 6:11
MR [16] - 3:21, 10:6, 11:2, 11:16, 11:20, 12:6, 12:8, 13:15,

13:19, 16:10, 16:22, 17:1, 17:10, 17:16, 17:23, 18:16

N

necessarily [1] - 10:2
need [6] - 4:19, 6:24, 11:8, 15:17, 17:6, 17:7
needed [1] - 3:25
negative [1] - 8:15
next [1] - 12:1
NO [1] - 1:3
non [1] - 14:3
non-true [1] - 14:3
none [1] - 6:4
Notary [2] - 1:19, 19:18
notes [1] - 19:7
nothing [3] - 4:20, 4:21
notice [6] - 3:15, 8:2, 8:8, 12:19, 12:20, 15:23
Notice [2] - 5:22, 5:25

O

objection [1] - 8:8
objective [6] - 3:24, 4:21, 5:5, 9:5, 14:15, 14:16
objectives [1] - 7:17
occurred [1] - 17:20
OF [4] - 1:1, 1:4, 19:2, 19:3
old [1] - 16:15
once [1] - 10:18
one [11] - 4:13, 5:15, 6:2, 6:3, 8:7, 8:15, 11:24, 12:19, 13:17, 15:23, 17:6
one-day [2] - 8:7, 12:19
opportunity [2] - 7:18, 15:25
opposing [1] - 7:20
opposite [1] - 16:14
order [1] - 18:17
original [1] - 12:10
outlook [1] - 4:24
owed [1] - 8:1
own [1] - 12:22

P

P.A [1] - 2:4
p.m [3] - 1:12, 18:20
parent [1] - 8:13

parties [1] - 19:10
parties' [1] - 19:11
past [2] - 9:8, 12:15
pay [1] - 18:1
pending [1] - 15:14
permit [2] - 15:6, 15:20
permitting [1] - 3:16
person [1] - 8:13
perspective [1] - 10:20
Petitioner/Wife [1] - 1:6
phone [1] - 4:23
PINELLAS [1] - 19:3
place [2] - 5:23, 17:2
plead [1] - 13:5
pleading [1] - 13:1
plus [1] - 11:23
point [2] - 4:13, 13:8
position [2] - 12:4, 14:20
possibility [2] - 10:24, 11:2
possible [1] - 10:16
practices [1] - 16:14
practicing [1] - 11:23
precisely [1] - 4:5
prejudice [3] - 12:18, 12:20, 14:24
prenup [4] - 10:21, 10:22, 11:3, 11:5
prepare [1] - 18:16
Present [1] - 2:8
present [4] - 3:4, 3:5, 3:6, 17:22
privilege [1] - 12:16
problem [3] - 4:25, 5:10, 10:7
problematic [1] - 14:4
problems [1] - 6:6
proceeding [3] - 3:1, 18:19, 19:6
produce [1] - 8:21
prohibit [1] - 11:15
prove [1] - 17:12
provide [1] - 14:1
Public [2] - 1:19, 19:18
pursue [1] - 5:3
put [3] - 7:20, 12:4, 14:20
putting [1] - 5:20

Q

questions [2] - 12:2, 17:18
quick [1] - 3:10

quickly [2] - 6:7, 6:8

R

RE [1] - 1:4
reality [1] - 13:22
realized [1] - 10:20
reason [3] - 5:11, 10:11, 11:12
reasonable [1] - 7:6
record [3] - 12:5, 17:1, 19:7
records [7] - 4:25, 5:10, 6:14, 7:14, 9:15, 10:14, 10:23
red [2] - 9:11
reheard [1] - 3:16
Rehearing [2] - 3:9, 3:12
relative [2] - 19:9, 19:11
relevant [1] - 14:18
remedy [1] - 13:3
repeatedly [1] - 14:1
report [1] - 19:5
REPORTED [2] - 1:18, 1:22
Reporter [2] - 2:9, 19:18
reporter [1] - 12:4
REPORTER'S [1] - 19:1
Reporters [1] - 18:15
reprehensible [1] - 8:3
represent [3] - 12:13, 13:12, 13:15
representatives [1] - 8:9
represented [1] - 18:11
representing [1] - 13:24
repugnant [2] - 12:12, 13:24
Repugnant [1] - 13:23
required [3] - 8:23, 17:24, 18:2
resigned [1] - 8:2
resolution [1] - 8:19
resolved [1] - 14:14
Respondent/
Husband [1] - 1:8
responsibility [1] - 18:9
responsive [1] - 13:1
rotate [1] - 16:7
running [1] - 16:13

S

SARAH [1] - 1:5
schedule [2] - 6:1, 17:19
school [2] - 8:12, 8:14
second [1] - 4:8
see [2] - 16:5, 16:6
send [1] - 14:23
sent [1] - 13:11
serious [1] - 13:20
services [1] - 9:22
set [9] - 3:10, 3:13, 5:21, 5:23, 8:18, 11:12, 11:18, 15:9, 15:14
setting [1] - 15:23
shared [1] - 6:18
Shorthand [1] - 19:18
shows [1] - 9:17
sick [1] - 6:12
simple [1] - 13:2
single [1] - 8:13
sinus [1] - 6:15
sitting [1] - 16:8
situation [1] - 7:5
six [2] - 7:22, 8:25
Snodgrass [1] - 2:9
soon [1] - 15:24
sorry [1] - 11:16
spawn [1] - 6:6
started [1] - 4:1
starting [1] - 16:4
STATE [2] - 1:1, 19:2
State [2] - 1:20, 19:18
stay [1] - 13:7
Stenograph [1] - 19:18
stenographic [1] - 19:7
STENOGRAPHICAL
LY [1] - 1:22
stenographically [1] - 19:5
still [5] - 8:19, 9:11, 10:5, 14:15, 15:17
stop [4] - 11:4, 17:14
straight [2] - 7:13, 10:13
stuff [3] - 12:22, 14:9, 14:13
suddenly [1] - 7:8
summations [1] - 14:3
surgery [1] - 6:16
Swann [1] - 2:5

T

tactics [1] - 4:11

Tampa [2] - 1:13, 2:5
teacher [1] - 8:14
teddy [1] - 16:15
ten [1] - 14:22
THE [20] - 1:1, 1:4, 3:2, 9:20, 10:16, 11:4, 11:19, 11:22, 12:7, 13:14, 13:17, 15:6, 16:11, 16:25, 17:5, 17:14, 17:21, 17:24, 18:18
they've [1] - 10:19
third [1] - 7:10
THIRTEENTH [1] - 1:1
timeliness [2] - 14:25, 15:2
today [1] - 6:14
together [2] - 9:24, 15:4
took [1] - 4:12
top [1] - 11:9
town [1] - 5:2
transcript [1] - 19:6
TRANSCRIPTION [1] - 1:23
TRELA [2] - 19:4, 19:17
Trela [1] - 1:19
trial [5] - 11:10, 11:11, 11:18, 11:21, 12:1
tried [2] - 6:10, 6:11
true [2] - 14:3, 19:6
trying [4] - 8:16, 9:15, 11:11, 11:22
two [3] - 7:5, 8:9, 9:24

U

uglier [1] - 9:12
ugly [1] - 4:2
under [1] - 9:14
unfortunately [1] - 12:12
up [5] - 5:14, 9:1, 13:18, 14:10, 15:1
upper [1] - 16:9
upper-hand [1] - 16:9

V

valid [2] - 7:3, 10:22
vast [1] - 6:6
version [1] - 10:17
VIVIAN [1] - 2:3

W

waived [1] - 12:15
week [1] - 12:1
weeks [2] - 7:22,

12:20
well-being [1] - 8:24
West [1] - 2:5
whatsoever [2] - 3:22, 12:21
WHEREUPON [1] - 3:1
wife's [2] - 4:17, 7:7
Withdraw [9] - 3:11, 9:23, 11:7, 11:13, 11:24, 12:11, 17:25, 18:3
withdraw [18] - 3:20, 5:16, 7:3, 11:15, 13:9, 14:7, 14:17, 14:19, 15:7, 15:19, 15:21, 16:2, 16:3, 17:8, 17:12, 17:13, 18:13, 18:14
withdrawing [1] - 8:7
withdrew [2] - 5:12, 15:1
worse [2] - 4:6, 9:13

Y

year [2] - 9:14, 16:5
years [1] - 11:23

Z

zero [2] - 12:18, 12:20
Zoom [1] - 3:4